

25STCV16732 25STCV16732

County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-09-17

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Case Number: 25STCV16732 Hearing Date: September 17, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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FIRST-CITIZENS BANK & TRUST COMPANY,

Plaintiff(s),

vs.

ADMIRAL

HOSPICE HEALTH CARE, INC., et al.,

Defendant(s).

Case No.:

25STCV16732

Hearing Date:

September 17, 2026

[TENTATIVE]

ORDER RE: APPLICATIONS FOR WRIT OF ATTACHMENT

Plaintiff/cross-defendant

First-Citizens Bank & Trust Company ("Plaintiff") seeks writs of attachment against defendants/cross-complainants Admiral Hospice Health Care, Inc. ("Admiral") and Kamran Jahangard Mahboob ("Mahboob") (collectively, "Defendants").

The two applications are denied.

I.

Background

1. Factual Background

On May 2, 2023, Plaintiff and Admiral executed a promissory note ("Note") for \$1,389,000 in principal, to mature May 2, 2033. (Cain Decl., ¶ 4, Ex. 1.) The same day, Mahboob executed and delivered to Plaintiff a Guaranty of Admiral's obligations under the Note ("Guaranty"). (Cain Decl., ¶ 8, Ex. 4.)

Defendants have not made any monthly payments under the Note since February 2024. (Cain Decl., ¶ 6.)

On October 22, 2024, Plaintiff made a written demand for payment, but Defendants have not cured the default. (Cain Decl., ¶ 7, Ex. 3.) Plaintiff accelerated the Note. (Cain Decl., ¶ 7.)

2. Procedural History

a.

Plaintiff's Claims

On June 10, 2025, Plaintiff filed this action against Defendants for breach of note, breach of guaranty, money lent, claim and delivery, and conversion. Proofs of service filed June 24, 2025 show Plaintiff served the summons and complaint on Admiral HHC by personal service on June 16, 2025 and on Mahboob by substituted service on June 14, 2025. On August 8, 2025, Defendants filed their answer to the complaint.

b.

Defendant's Claims

Defendants filed their cross-complaint against Plaintiff and cross-defendants Josie Jones ("Jones"), Admiral Hospice Care, Inc. ("Admiral HC"), and Admiral Home Health, Inc. ("Admiral Home") (collectively, "Cross-Defendants") on August 8, 2025.

On November 7, 2025, Defendants filed their first amended cross-complaint ("FAXC"). On December 17, 2025, the Court found the case related to 24STCV16210 by virtue of the FAXC. A proof of service filed April 7, 2026 shows Defendants served the cross-complaint on Jones by personal service on April 5, 2026. On June 8, 2026, the Court sustained Plaintiff's demurrer to the second and tenth causes of action to the FAXC.

On June 29, 2026, Defendants filed their second amended cross-complaint ("SAXC"). On August 6, 2026, Cross-Defendants demurred to the SAXC.

c.

Applications for Writ of Attachment

On April 30, 2026, the trial court vacated the hearing on application for an unfiled writ of attachment scheduled for June 8, 2026.

On May 20, 2026, Plaintiff filed applications for writ of attachment against Defendants. On July 7, 2026, Defendants filed their opposition. On July 10, 2026, Plaintiff filed a notice of withdrawal of its applications. On July 13, 2026, the Court vacated the hearing on the applications and admonished counsel that it must contact the courtroom to remove noticed matters from the calendar in Department 834.

On July 22, 2026, Plaintiff filed the instant two applications for writ of attachment against Defendants, noticed for September 10, 2026. On September 3, 2026, Plaintiff filed a notice that it had not received any opposition to the applications. Later on September 3, 2026, Defendants filed untimely oppositions to the applications, as well as an ex parte application for an order accepting the opposition as filed and permitting Plaintiff to file a reply on September 9, 2026, or alternatively to

continue the hearing. On September 4, 2026, the parties filed a joint stipulation and proposed order seeking the same, excluding the alternative continuance.

On September 8, 2026, the Court on its own motion continued the hearing to September 17, 2026. The Court deemed the ex parte application moot and took it off calendar. The Court ordered any reply filed and served no later than September 9, 2026. On September 9, 2026, Plaintiff filed its reply.

II.

Applicable Law

“Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this article for a right to attach order and a writ of attachment by filing an application for the order and writ with the court in which the action is brought.” (CCP § 484.010.)

The application shall be executed under oath and must include: (1) a statement showing that the attachment is sought to secure the recovery on a claim upon which an attachment may be issued; (2) a statement of the amount to be secured by the attachment; (3) a statement that the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based; (4) a statement that the applicant has no information or belief that the claim is discharged or that the prosecution of the action is stayed in a proceeding under the Bankruptcy Act (11 U.S.C. section 101 et seq.); and (5) a description of the property to be attached under the writ of attachment and a statement that the plaintiff is informed and believes that such property is subject to attachment. (CCP § 484.020.)

The application for a writ of attachment must be supported “by an affidavit showing that the plaintiff on the facts presented would be entitled to a judgment on the claim upon which the attachment is based.” (CCP § 484.030.)

The court shall consider the showing made by the parties, as well as the pleadings and other papers in the record. (CCP § 484.090(a), (d).) The Court shall issue a right to attach order

if it finds all of the following:

“(1) The claim upon which the attachment is based is one upon which an attachment may be issued.

(2) The plaintiff has established the probable validity of the claim upon which the attachment is based.

(3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.

(4) The amount to be secured by the attachment is greater than zero.”

(CCP § 484.090(a)(1-4).)

At the times prescribed by CCP section 1005, subdivision (b), the defendant must be served with a copy of the summons and complaint, notice of application and hearing, and a copy of the application and supporting affidavits. (CCP § 484.040.)

“The Attachment Law statutes are subject to strict construction....” (Epstein v. Abrams (1997) 57 Cal.App.4th 1159, 1168.)

III.

Request for Judicial Notice

In reply, Plaintiff request judicial notice of the following exhibits: (1) the June 15, 2026 Notice of Ruling on Order in this case (RJN Ex. A); and (2) a Term Sheet signed by Plaintiff and Jahangard on July 28, 22 (RJN Ex. B.) Request 1 is denied as the Court need not take judicial notice of documents on file before it in the current matter. Request 2 as the parties' private terms sheet is not any category of judicially noticeable material.

IV.

Analysis

1. Claim on Which Attachment Can Be Based

“[A]n attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees.” (CCP § 483.010(a).) “An attachment may not be issued on a claim which is secured by any interest in real property arising from agreement” (CCP § 483.010(b).)

Here, Plaintiff's claims against Defendants are premised on its claims for breach of the Note and Guaranty. (Mem. at 3-4.) Plaintiff may seek attachment based on these claims.

2. Contract Based on a Commercial Claim

If the action is against a defendant who is a natural person, an attachment may be issued only on a commercial claim which arises out of the defendant's conduct of a trade, business, or profession. (CCP §483.010(c).) Consumer transactions cannot form a basis for attachment. (CCP §483.010(c); Kadison, Pfaelzer, Woodard, Quinn & Rossi v. Wilson (“Kadison”) (1987) 197 Cal.App.3d 1, 4 [action involving trust property was a commercial, not a consumer, transaction].)

As to Mahboob, the Note was executed to fund Admiral. (Cain Decl., ¶ 4.) Mahboob, principal of Admiral (Mahboob Decl., ¶ 1) executed the Guaranty for the Note to induce Plaintiff to execute the note. (Cain Decl., ¶ 8.) Defendants concede the Note and Guaranty are commercial. (Opp. at 11; Mahboob Decl., ¶ 24.)

Accordingly, the Court finds that, as to Mahboob, the claims are commercial in nature, not consumer.

3. Fixed or Readily Ascertainable Amount

A claim is “readily

ascertainable" where the damages may be readily ascertained by reference to the contract and the basis of the calculation appears to be reasonable and definite. (CIT Group/Equipment Financing, Inc. v. Super DVD, Inc. (2004) 115 Cal.App.4th 537, 540-41 ["Super DVD"].) The fact that the damages are unliquidated is not determinative. (Ibid.) But the contract must furnish a standard by which the amount may be ascertained and there must be a basis by which the damages can be determined by proof. (Ibid.)

Here, Plaintiff's evidence shows that Plaintiff and Admiral executed the Note in principal amount \$1,389,000 to mature on May 2, 2033. (Cain Decl., ¶ 4, Ex. 1.) Plaintiff and Mahboob executed the Guaranty wherein Mahboob guaranteed Admiral's obligations under the Note. (Cain Decl., ¶ 8, Ex. 4.) Defendants have failed to make monthly payments due under the Note since February 2024. (Cain Decl., ¶ 6.) On October 22, 2024, Plaintiff made a written demand, but Defendants have not cured the default. (Cain Decl., ¶ 7, Ex. 3.) Plaintiff accelerated the Note. (Cain Decl., ¶ 7.)

Assuming, arguendo, that the claimed amount was readily ascertainable, Plaintiff's fee and cost estimates would be mostly appropriate. Plaintiff estimates it will incur \$35,863.98 in allowable attorney fees and \$9,000 in allowable costs. (Rubin Decl., ¶ 4.) Plaintiff applies LASC Local Rule 3.214, which sets the amount of reasonable attorney fees recovered under a contract provision for recovery of such fees.[1] However, Plaintiff makes an apparent clerical error. The amount should be \$33,863.38. The costs are attested by attorney declaration and are reasonable. Therefore, aside from a \$2,000 reduction due to the clerical error, the fees and costs estimates are appropriate.

Nevertheless, Plaintiff offers only the conclusory statement that, as of April 21, 2026, the total remaining obligation on the Note is \$1,529,669.23, composed of \$1,318,644.21 in principal, \$144,583.57 in interest, \$9,238.23 in late fees, and \$57,203.22 in other fees. (Cain Decl., ¶ 10.) As stated above, and as Defendants note (Opp. at 9), the damages must be readily ascertained by reference to the contract and the basis of the calculation must appear reasonable and definite. (Super DVD, supra, 115 Cal.App.4th at 540-41.) Here, moving party does not supply competent evidence to support all the amounts sought. Without more than conclusory statements, Plaintiff cannot show that the calculation is reasonable and definite.[2]

Accordingly, the amount is not readily ascertainable.[3]

V.

Conclusion

Because the amount is not readily ascertainable, the Court need not analyze the remaining statutory elements or address the undertaking. Plaintiff's two applications for writs of attachment are DENIED.

Date: September 17, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at SMCDEPT834@lacourt.ca.gov with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the

court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

The Court has the power to determine a different amount of reasonable fees. However, based on the evidence and argument before the Court in this matter, there is no reason for it to depart from the basic rule.

[2]

In reply, Plaintiff argues it satisfies its burden because the Cain Declaration proves the amount. (Reply at 5.) It does not. As Defendants observe, “a mathematical total is not self-proving.” (Opp. at 9.) While Plaintiff is correct that Defendants seek more than Plaintiff is required to supply, Plaintiff still must show the calculation is reasonable and definite.

[3]

Because the amount is not readily ascertainable, the Court will not discuss Defendants' offset claims at any length. However, the Court notes that Defendants fail to inform the Court of the amount they seek in offset. An offset must itself be readily ascertainable. (*Lydig Construction, Inc v. Martinez Steel Corp.* (2015) 234 Cal.App.4th 937; see *Pos-A-Traction v. Kelly–Springfield Tire Co.* (C.D.Cal.2000) 112 F.Supp.2d 1178, 1183.)